

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC
OF SRI LANKA**

**Court of Appeal Case No:
CA(PHC)0217/18
(CA(PHC)0218/18)
(CA(PHC)0219/18)**

**Kandy High Court Case No:
HC(REV) 132/2018**

**Kandy Magistrate Court
Case No: 9550/18**

**Assistant Commissioner of Co-operative
Development**, (Kandy District),
Department of Central Province Co-operative
Development,
Ehelepola Kumarihamy Road, Bogambara,
Kandy.

Plaintiff

Vs.

**Central Province Vehicle Dealing Co-
operative Society Limited**,
No 172/4/A, Miniruwan, Kudagalawatta,
Polgolla.

Defendant cooperative Society

AND BETWEEN

1. **Central Province Vehicle Dealing Co-
operative Society Limited**,
No 172/4/A, Miniruwan, Kudagalawatta,
Polgolla.

Defendant-Petitioner

2. **Amal Pradeep Jayasinghe**,
No 90/2, Aniwaththa,
Kandy.
3. **L. N. S. Naurunna**,
No 02, Sirimalwaththa,
Gunnepana.

4. **M. K. Weerasinghe,**
No 32, Bahirawakanda Lane, Asgiriya,
Kandy.

2nd to 4th Petitioners

Vs

**Assistant Commissioner of Co-operative
Development,** (Kandy District),
Department of Central Province Co-operative
Development,
Ehelepola Kumarihamy Road, Bogambara,
Kandy.

Plaintiff-Respondent

1. **Honorable Attorney General,**
Attorney General's Department,
Colombo.

1st Respondent.

2. **S. M. S. Herath,**
Dodamwala road, Asgiriya, Kandy.

2nd Respondent.

3. **Lalith Yasantha Gunawardene,**
No 619, Piliyandala Road,
Egodawaththa, Erawwala.

Depositor-Respondent

AND NOW BETWEEN

1. **Central Province Vehicle Dealing Co-
operative Society Limited,**
No 172/4/A, Miniruwan, Kudagalawatta,
Polgolla.

Defendant-Petitioner-Appellant

2. **Amal Pradeep Jayasinghe,**
No 90/2, Aniwaththa,
Kandy.
3. **L. N. S. Naurunna,**
No 02, Sirimalwaththa,
Gunnepana.
4. **M. K. Weerasinghe,**
No 32, Bahirawakanda Lane, Asgiriya,
Kandy.

2nd to 4th Petitioner-Appellants

Vs

**Assistant Commissioner of Co-operative
Development,** (Kandy District),
Department of Central Province Co-operative
Development,
Ehelepola Kumarihamy Road, Bogambara,
Kandy.

Plaintiff-Respondent-Respondent

1. **Honorable Attorney General,**
Attorney General's Department,
Colombo.

1st Respondent-Respondent

2. **S. M. S. Herath,**
Dodamwala road, Asgiriya, Kandy.

2nd Respondent-Respondent

3. **Lalith Yasantha Gunawardene**,
No 619, Piliyandala Road,
Egodawaththa, Erawwala.

Depositor-Respondent-Respondent

Before : **D. THOTAWATTA, J.**
K. M. S. DISSANAYAKE, J.

Counsel : Priyantha Alagiyawanna with Heshani
Gunaratne instructed by Bushra Hashim
for the Defendant-Petitioner-Appellant and
2nd to 4th Petitioner-Appellants.

Shemanthi Dunuwille, S.C. with
Chathurika Weththasinghe, ASA for the
Plaintiff-Respondent-Respondent.

2nd Respondent-Respondent and the
Depositor-Respondent-Respondent are
absent and unrepresented.

Written Submissions
of the Defendant-Petitioner
-Appellant and
2nd to 4th Petitioner-Appellants
tendered on : 14.11.2022 and 10.03.2026

Written Submissions
of the Plaintiff-Respondent
-Respondent tendered on : Not tendered

Written Submissions
of the 1st Respondent-
Respondent,

the 2nd Respondent-
Respondent and the
Depositor Respondent-
Respondent tendered on : Not tendered

Decided on : 10.07.2026

K. M. S. DISSANAYAKE, J.

The Accused/Defendant-Petitioner and the 2nd to 4th Petitioners mentioned in the notice had in the application in revision bearing No. 32/18 filed by them in the High Court of the Central Province holden at Kandy (hereinafter called and referred to as ‘the High Court of the Province’) invoked the extra-ordinary revisionary jurisdiction of the High Court of the Province against an order made by the learned Additional Magistrate of Kandy, dated 23.10.2018, (hereinafter called and referred to as “the MC order”) over-ruling the preliminary legal objection raised by the 2nd to 4th Petitioners mentioned in the notice with regard to the application made thereto by the Assistant Commissioner of Co-operative Development-the Plaintiff-Respondent thereto, seeking to add the 2nd to 4th Petitioners mentioned in the notice as parties to the action instituted thereat, by it upon furnishing a certificate thereto, under and in terms of section 59(4) of the Co-operative Society Statute of the Central Province of 10 of 1990- published in the Government Gazette bearing No. 75 and dated 22.01.1993 (hereinafter called and referred to as “the Statute”) and the learned High Court Judge of the Central Province holden at Kandy (hereinafter called and referred to as “the learned High Court Judge of the Province”) had in the order dated 12.12.2018 (hereinafter called and referred to as ‘the HC order’), dismissed it *in-limine* by holding that Rule 26 of the Co-operative Societies Rules of 1973 (hereinafter called and referred to as ‘the Co-operative Societies Rules’) permits the Directors of a Co-operative Society to be added as a party to an action instituted by the Commissioner of Co-operative Development under and in terms of section 59(4) of the Statute in instances where circumstances stipulated in Rule 26 of the Co-operative Societies Rules do warrant such a cause. It is this order that the

Defendant-Petitioner-Appellant and the noticed received 2nd to 4th Petitioner-Appellants (hereinafter called and referred to as “the Appellants”) now, seek to canvass before this Court in the instant appeal.

It is to be noted at this juncture, that when the instant appeal bearing No. **CA(PHC)0217/2018** came on before us for argument on 26.01.2026, the learned Counsel for the Appellants as well as the learned State Counsel for the Plaintiff-Respondent-Respondent (hereinafter called and referred to as ‘the Plaintiff-Respondent’) in Appeals bearing Nos. **CA(PHC)0218/2018** and **CA(PHC)0219/2018** informed Court that the parties thereto, too, are agreeing to be bound by the judgement of this Court in the present appeal bearing No. **CA(PHC)0217/2018** and hence, the judgement in the instant appeal bearing No. **CA(PHC)0217/2018** will bind all the parties in Appeals bearing Nos. **CA(PHC)0218/2018** and **CA(PHC)0219/2018** too, as urged and agreed by the respective Counsel.

Furthermore, respective Counsel for the parties had informed Court that instant appeal can be disposed of by way of written submissions and hence, the parties were directed to furnish to Court the written submissions within the period of time stipulated by Court. However, it is to be observed that written submissions for the Plaintiff-Respondent had not been furnished to this Court despite a significant number of dates were allowed by this Court for that purpose as urged by the learned State Counsel. Hence, the judgement will be pronounced on the strength of the material available on record and the written submissions so furnished to Court by the Appellants as urged and agreed.

Let me now, briefly, set out as follows the facts material and relevant to the instant appeal as is discernible from the petition of appeal.

The 1st Appellant being a registered Co-operative society which can sue and be sued by its corporate name; and that the 2nd, 3rd and 4th Appellants are the Directors of the 1st Appellant Co-operative Society; and that the Dispositor-Respondent had by way of letter of demand, demanded from the 1st Appellant

the monies deposited thereat, by him being a member thereof; and that since he was not a member of the 1st Appellant Co-operative Society and since the payment if any, should be paid after the recovery of the loans given by it, the 1st Appellant was not in a position to pay the said sums of monies to him; and that in the circumstances the Plaintiff-Respondent had referred the dispute between the 1st Appellant-Co-operative Society and the Depositor-Respondent to the Arbitrator for arbitration; and that the Arbitrator had having arbitrated the dispute between the aforesaid parties, awarded an arbitral award in favour of the Depositor-Respondent and against the 1st Appellant-Co-operative Society; and that the Assistant Commissioner of Co-operative Development-the Plaintiff-Respondent had upon the 1st Appellant's failure to honour the arbitral award, issued a certificate to the Magistrate Court of Kandy for the enforcement of it by virtue of the powers vested in it by section 59(4) of the Statute in an action bearing No. 9550/18 naming therein, the 1st Appellant as the defaulter within the meaning of section 59(4) of the Statute; and that pending the final determination of the matter, the Assistant Commissioner of Co-operative Development-the Plaintiff-Respondent had by way of a motion, furnished to the Magistrate Court a list setting out the names of the Board of Directors of the 1st Appellant-Co-operative Society to which the 2nd, 3rd and 4th Appellants who appeared in Court upon notice, had objected and the learned Additional Magistrate of Kandy had having inquired thereto, made the impugned order (the MC order) allowing the application of the Assistant Commissioner of Co-operative Development-the Plaintiff-Respondent thereby, permitting it to add 2nd to 4th Appellants as parties thereto, and proceed accordingly, against which application in revision had been filed in the High Court of the Province seeking to revise and set aside the MC order which too, was dismissed by it and it is against this Order that the instant appeal has now, been preferred to this Court by the Appellants.

The Appellants in the application in revision preferred to the High Court of the Province, had invited it to invoke the extra-ordinary revisionary jurisdiction

vested in it by Article 154P(3)(b) of the Constitution of the Democratic Socialist Republic of Sri Lanka to revise and set aside the MC order. It is in this context, I would think it expedient at this juncture to examine the law governing the exercise of the extra-ordinary revisionary jurisdiction vested in an Appellate Court.

After an exhaustive analysis of all the authorities in relation to the exercise of the extra-ordinary revisionary jurisdiction, it was held in **Rustom vs. Hapangama & Company (1978-79) 2 SLR 225**, that “the powers by way of revision conferred on the Appellate Court are wide and can be exercised whether an appeal has been taken against an order of the original Court or not. **However, such powers would be exercised only in exceptional circumstances where an appeal lay and as to what such exceptional circumstances are dependent on the facts of each case**”. [emphasis is mine]

Court in **Rustom vs. Hapangama & Co (Supra)** further observed in the following manner; “The trend of authority clearly, indicates that where the revisionary powers of the Court of Appeal are invoked, the practice has been that these powers will be exercised if there is an alternative remedy available, only if the existence of special circumstances are urged necessitating the indulgence of this Court to exercise its powers in revision.”

It was further observed by Court in the decision in **Rustom Vs. Hapangama & Company(Supra)** that, “This Court has the power to act in revision even though the appeal is available, in appropriate cases. The question which has now to be decided is whether the instant case is an appropriate case in which we should exercise our discretionary powers of revision. In his petition and affidavit the petitioner has not set out the reasons for his seeking this method of rectification of the order rather than the ordinary method of appeal. Nor has he set out any exceptional circumstances as to why we should grant him the indulgence of exercising our revisionary powers when he could have appealed against the order with leave”.

It was held by Court in **Dharmaratne and Another Vs. Palm Paradise Cabanas Ltd and Others 2003 (3) SLR 24** at page 30 that “Thus, the existence of exceptional circumstances is the process by which the Court selects the cases in respect of which this extra-ordinary method of rectification should be adopted. If such a selection process is not there, revisionary jurisdiction of this Court will become a gateway for every litigant to make a second appeal in the grab of a revision application or to make an appeal in situations where the legislature has not given right of appeal. The practice of Court to insist on the existence of exceptional circumstances for the exercise of revisionary powers has taken deep root in our law and has got hardened into a rule which should not be lightly disturbed. The words used by the legislature do not indicate that it ever intended to interfere with this ‘rule of practice’.”

It was held in **Urban Development Authority vs. Ceylon Entertainments Ltd. and another reported in 2002 [B.L.R]** at page 66 that “the petitioner who invokes the revisionary jurisdiction of this Court should expressly set out the exceptional circumstances and an express pleading to that effect is a *sine quo non*, for this Court to consider the relief claimed by the petitioner. In the absence of an express plea, this Court would be precluded from considering the relief claimed in the application”.

Let me now, quote a passage from the decision in **Perera v. Muthalib 45 NLR 412** to the following effect;

“I would invite attention to the observations made by Wood-Renton J. in the King v. Nordeen. He said; I do not think that that power (i.e. , revisionary power) is at all limited to those cases in which either no appeal lies or for some reason or other an appeal has not been taken”, but he went on to add that this power would be exercised only when a strong case is made out “amounting to a positive miscarriage of justice in regard to either the law, or the judge’s appreciation of the facts. In the case I am dealing with I should have felt compelled to give relief solely on the ground

that what may well be said to be a failure of justice has been brought to the notice of this Court, and technical rules must make way for the granting of redress in such a case. There has been a violation of the fundamental rule of judicial procedure that a person sought to be affected by an order shall first be heard. But, in this instance there is yet another ground upon which this application for revision ought to be exercised and that is that the petitioner had no knowledge of the order made against him till the time for preferring an appeal had elapsed.”

In the case of **Attorney-General v. Podi Singho 51 NLR 385** it was held that “even though the revisionary powers should not be exercised in cases when there is an appeal and was not taken, the revisionary powers should be exercised only in exceptional circumstances such as (a) miscarriage of justice (b) where a strong case for interference by the Supreme Court is made out or (c) where the applicant was unaware of the order.” Court also observes that “the Supreme Court in exercising its powers of revision is not hampered by technical rules of pleading and procedure.”

In **Bank of Ceylon vs Kaleel and others 2004 [1] SLR 284**, at page 287 it was stated that, “In the circumstances this Court will not interfere by way of revision when the law has given the plaintiff an alternate remedy and when the plaintiff has not shown the existence of exceptional circumstances warranting the exercise of revisionary jurisdiction. In any event, for this Court to exercise revisionary jurisdiction the order challenged must have occasioned a failure of justice and be manifestly erroneous which go beyond an error or defect or irregularity that an ordinary person would instantly react to it. In other words the order complained of is of such a nature which would have shocked the conscience of Court.”

In **Thilagaratnam Vs. E.A.P. Edirisingha 1982 [1] SLR, P56**, it was observed that “though the Appellate Courts' powers to act in revision were wide and would be exercised whether an appeal has been taken against the order of the original

court or not, such powers would be exercised only in exceptional circumstances. There were no exceptional circumstances in this case to justify the exercise of the Court's powers of revision.”

In **Cadaman Pulle Vs. Ceylon Paper Sacks Ltd 2001 [3] SLR, P112**, it was held that “no exceptional circumstances are disclosed why his application for revisionary relief should be entertained after the lapse of nearly two years. The existence of exceptional circumstances is a pre-condition for the exercise of the powers of revision.”

The Supreme Court, in the case of **Rasheed Ali Vs. Mohamed Ali 1981 [1] SLR, P262**, held that, “the powers of revision vested in the Court of Appeal are very wide and the Court can in a fit case exercise that power whether or not an appeal lies. Where the law does not give a right of appeal and makes the order final, the Court of Appeal may nevertheless exercise its powers of revision, but it should do so only in exceptional circumstances. Ordinarily, the Court will not interfere by way of review, particularly when the law has expressly given an aggrieved party an alternate remedy such as the right to file a separate action except when non-interference will cause a denial of justice or irremediable harm..... The fact that a Judge's order is merely wrong is not a sufficient ground for exercising the powers of revision.”

The Supreme Court in **AG. Vs. Najimudeen-SC Appeal No. 62/2016-SC Minute of 13-03-2020** observed that, “the Defendant has had an alternative remedy available. In the instant case, what the Provincial High Court was called upon to exercise was its revisionary jurisdiction. The Defendant has not been successful in convincing Court that the grounds he had urged have any exceptional character which is sufficient to move Court to exercise its discretionary revisionary power. Thus, this Court has no reason to disagree with the conclusion of the Provincial High Court that there are no exceptional circumstances to invoke the revisionary jurisdiction of the Court. In these

circumstances and for the foregoing reasons, the appeal is dismissed without costs.”

In **Geethani Nilushika Vs. Waruni Harshika-SC Appeal No. 93/2017-SC Minute of 18.06.2021** Court observed that; **“Revision is a discretionary remedy. A party cannot invoke this extraordinary jurisdiction of the Appellate Court as of right. When a right of appeal is available against a Judgment or an Order, a party seeking to come before Court by way of revision shall explain in the petition why he did not exercise his right of appeal. In the revision application filed before the High Court there was no such explanation at all.”**

In the case of **Seylan bank Vs. Thangaveil 2004 [2] SLR, 101** wherein Court held that, “no revision lies. The petitioner has not resorted to his statutory right of appeal with leave of court. He has not set out in his petition for revision any exceptional circumstances.”

See also; **Hotel Galaxy (Pvt) Ltd Vs. Mercantile Hotels Management Ltd. 1978 (1) SLR 05, Janita Vs. Abeysekara (Sri skantha Law Report Vol iv Page 22)**, and **Thilagaratnam Vs. Edirisinghe 1982 (1) SLR 56.**

In the light of the principle laid down by Court in the aforesaid decisions, an Appellate Court can exercise its revisionary jurisdiction conferred on the Appellate Court **only and only, in exceptional circumstances, where an alternative remedy lay.** [emphasis is mine]

Having borne in mind the law set out therein, let me now, deal with the instant appeal.

Procedure to be adopted by a Magistrate upon a receipt of a certificate under section 59(4) of the Statute has been laid down by the very same section in that the learned Magistrate upon receipt of a certificate thereunder, make order issuing notices on the defaulter named therein, to show cause why further proceedings should not be taken against him for the recovery of the sums of

monies stated in the certificate; and that in case, the defaulter does not show sufficient cause therefor, the sums of monies mentioned in the certificate should be recovered as a fine imposed by a Magistrate to which the provisions in section 291 of the Criminal Procedure Code would be applicable except for provision contained in 291(1)(c) thereof.

A careful scrutiny of section 59(4) of the Statute becomes abundantly, clear that it would afford an opportunity to the defaulter by way of show cause, to show that he is not indeed, the defaulter of the sums of monies mentioned in the certificates issued to the Magistrate Court thereunder.

Hence, section 59(4) of the Statute provides an effective, efficacious and expeditious remedy for a defaulter by way of show cause, to show that he is not indeed, the defaulter of the sums of monies mentioned in the certificates issued to the Magistrate Court thereunder in the proceedings before the Magistrate.

In the light of the law set out above, when the learned Additional Magistrate of Kandy in the order impugned (the MC order), permitted the Assistant Commissioner of Co-operative Development-Plaintiff-Respondent to name the 2nd, 3rd and 4th Appellants too, as defaulter of the sums of monies mentioned in the certificate filed before it under section 59(4) of the Statute thereby, affording the 2nd, 3rd and 4th Appellants too, an opportunity to show cause why further proceedings should not be taken against them for the recovery of the sums of monies stated in the certificate filed before the Magistrate of Kandy as required by section 59(4) of the Statute wherein, they would have shown cause that they are not indeed, the defaulter of the sums of monies mentioned, had they availed themselves of the remedy so provided for by section 59(4) of the Statute.

However, it is significant to observe that the 2nd, 3rd and 4th Appellants had not in any manner, opted to resort to the effective, efficacious and expeditious remedy so provided for by section 59(4) of the Statute for a defaulter by way of show cause, to show that they are not indeed, the defaulter of the sums of monies mentioned in the certificates issued to the Magistrate Court thereunder in the

proceedings before the Magistrate, instead, they had not only, opted to object to the application made to the Magistrate Court of Kandy by the Assistant Commissioner of Co-operative Development-the Plaintiff-Respondent for them to be added as the defaulter of the sums of monies mentioned in the certificate issued to the Magistrate Court of Kandy by the Assistant Commissioner of Co-operative Development-the Plaintiff-Respondent but also, had they opted to institute an application in revision inviting the High Court of the Province to revise and set aside the order of the learned Magistrate permitting the application to add 2nd to 4th Appellants as parties thereto, and proceed accordingly. They had not stopped at that, but that they had opted to prefer the instant appeal to this Court from the dismissal by the High Court of the province of the application in revision preferred thereto, by the 2nd, 3rd and 4th Appellants from the MC order.

However, a careful perusal of the record manifestly, shows that not an iota of evidence had been adduced by the 2nd, 3rd and 4th Appellants firstly, in the petition filed along with the application in revision in the High Court of the Province or else in the petition of appeal filed to this Court why they did not avail themselves of the effective, efficacious and expeditious remedy so provided for by section 59(4) of the Statute for a defaulter by way of show cause, to show that he is not indeed, the defaulter of the sums of monies mentioned in the certificates issued to the Magistrate Court thereunder in the proceedings before the Magistrate, before they had opted to move in revision and thereafter to file the instant appeal to this Court despite the effective, efficacious and expeditious remedy so provided for by section 59(4) of the Statute for a defaulter by way of show cause, to show that he is not indeed, the defaulter of the sums of monies mentioned in the certificates issued to the Magistrate Court thereunder in the proceedings before the Magistrate.

Hence, I am of the view that the application in revision preferred by the Appellants to the High Court of the Province ought to have been dismissed *in-limine* on this ground alone in view of their total failure to avail themselves of the effective, efficacious and expeditious remedy so provided for by section 59(4) of

the Statute for a defaulter by way of show cause, to show that they are not indeed, the defaulter of the sums of monies mentioned in the certificates issued to the Magistrate Court thereunder in the proceedings before the Magistrate upon them being named as defaulter by the learned Additional Magistrate of Kandy in the order impugned (the MC order), though not directed the judicial mind of the learned High Court Judge of the Province to this pivotal and pertinent question that ought to have been taken into consideration by Court in determining the availability of this extra-ordinary method of rectification in revision of the MC order on the alleged grounds disclosed in the petition filed in the High Court of the Province by the Appellants.

Let me now, examine the reasons adduced by the learned Additional Magistrate of Kandy for overruling the preliminary legal objection so raised by the Appellants to the application to add the 2nd, 3rd and 4th Appellants too, as defaulter to the sums of monies mentioned in the certificate filed in the Magistrate Court of Kandy under 59(4) of the Statute by the Assistant Commissioner of Co-operative Development-Plaintiff-Respondent and the reasons adduced therefor, being that Rule 72 of the Co-operative Societies Rules permits Board of Directors of a Co-operative Society too, to be named as a defaulter in a certificate filed by the Commissioner of Co-operative Development under section 59(4) of the Statute in instances set out therein and the view so held by the learned Additional Magistrate of Kandy had been totally, endorsed by the Learned High Court Judge of the Province while affirming the same.

However, the Appellants had sought to contend both in the High Court of the Province in the application in revision as well as before this Court in appeal that Rule 72 of the Co-operative Societies Rules has no application to the issue at hand in view of the promulgation of the Co-operative Society Statute of the Central Province of 10 of 1990-published in the Government Gazette bearing No. 75 and dated 22.01.1993, but not an iota of proof had been adduced in support of the contention so advanced by the Appellant.

Besides, upon a careful perusal of the Statute and the Co-operative Societies Rules, they clearly, show that none of them contain anything which support the contention so advanced by the Appellants.

Hence, I would hold that the petition filed in the High Court of the Province along with the application in revision does not in any manner, disclose any exceptional circumstances, warranting the exercise of this extra-ordinary method of rectification by the High Court of the Province in revision of the MC order as rightly, held by the High Court Judge of the Province.

I would therefore, see no illegality and/or impropriety and/or irregularity of the MC order sought to be impugned by the Appellants in the application in revision filed in the High Court of the Province nor of the HC order which affirmed the MC order and which sought to be impugned by the Appellants in the instant appeal before us.

In view of the foregoing, I would hold that instant appeal is not entitled to succeed both in fact and law.

I would thus, hold that the contentions so advanced and the submissions so made in support thereof, by the learned Counsel for the Appellants at the hearing of this appeal before us by way of written submissions, are not entitled to succeed in both fact and law and as such they should be rejected.

Hence, I would proceed to dismiss the instant appeal with costs.

As urged and agreed by the respective Counsel, I would hold that the Judgement in the instant appeal will bind the parties in the appeals bearing Nos. **CA(PHC)0218/2018** and **CA(PHC)0219/2018** too.

In the result, the appeals bearing Nos. **CA(PHC)0218/2018** and **CA(PHC)0219/2018** too, would stand dismissed with costs.

Before I conclude, I would desire to state that it is still, open to the 2nd, 3rd and 4th Appellants to avail themselves of the defence that may be available to them

under section 59(4) of the Statute as enumerated above, when this matter will come up before the Magistrate Court of Kandy by way of further proceedings in view of the decision of this Court if they are so advised.

I would direct the Registrar to cause a copy of the order of the instant appeal to be filed of record in appeals bearing Nos **CA(PHC)0218/2018** and **CA(PHC)0219/2018**.

JUDGE OF THE COURT OF APPEAL

D. THOTAWATTA, J.

I agree.

JUDGE OF THE COURT OF APPEAL